Certified Copy
of Original on File in the
Office of the City Clerk

RESOLUTION NO. 2025 - 43

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DELANO, CALIFORNIA, ORDERING THE SUBMISSION TO THE QUALIFIED ELECTORS OF THE CITY OF THREE MEASURES RELATING TO ESTABLISHING AN ELECTIVE OFFICE OF MAYOR TO BE INCLUDED AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 AND GIVING NOTICE OF THE SAME

WHEREAS, a General Municipal Election will be held in the City of Delano ("City"), California, on Tuesday, November 3, 2026; and

WHEREAS, on June 2, 2025, the City Council adopted a resolution calling and giving notice of the holding of a General Municipal Election to be held on Tuesday, November 3, 2026; and

WHEREAS, on June 2, 2025, the City Council adopted a resolution requesting the Board of Supervisors of the County of Kern to render specified services for the General Municipal Election to be held on November 3, 2026; and

WHEREAS, the City Council desires to submit to the voters at the election three questions relating to the Elective Office of Mayor.

NOW, THEREFORE, BE IT RESOLVED, that the City Council of the City of Delano, California, does authorize and determine as follows:

SECTION 1. The City Council hereby orders that the following questions be submitted to the voters in the City of Delano, California, on Tuesday, November 3, 2026, and that the three (3) measures are to appear on the ballot as follows:

ELECTIVE OFFICE OF MAYOR Shall the electors elect a mayor and four city council members? A "Yes" vote means the citizens directly elect the mayor; a "No" vote continues the practice that the council chooses one of its number to preside as Mayor on an annual basis.	YES
	NO

AND

TWO YEAR TERM OF ELECTIVE OFFICE OF MAYOR Shall the term of office of mayor be **two years**?	YES
	NO

AND

FOUR YEAR TERM OF ELECTIVE OFFICE OF MAYOR Shall the term of office of mayor be **four years**?	YES
	NO

SECTION 2. The ballots to be used at the election shall be in the form and content as required by law.

SECTION 3. The proposed measures submitted to the voters are attached as Exhibit "A" and Exhibit "B," which are incorporated by reference

SECTION 4. The vote requirement for the measures to pass is a majority of 50% +1 of the votes cast.

SECTION 5. The polls for the election shall open at 7:00 a.m. on the day of the election and shall remain open continuously from that time until 8:00 p.m. of the same day when the polls shall be closed, except as provided in Elections Code section 14401.

SECTION 6. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

SECTION 7. Notice of the time and place of holding the election is hereby given and the City Clerk is hereby authorized, instructed and directed to give further or additional notice of the election in the time, form, and manner required by law.

SECTION 8. The City Clerk is directed to file a certified copy of this Resolution with the Kern County Registrar of Voters.

PASSED AND ADOPTED by the City Council of the City of Delano at a special meeting held on the 2nd day of June, 2025, by the following vote:

AYES: NUNEZ/ALINDAJAO/OSORIO/SOLORIO-RUIZ
NOES: MORRIS
ABSENT: NONE
ABSTAIN: NONE

Liz Morris, Mayor

ATTEST:

Ricardo G. Chavez, City Clerk

APPROVED AS TO FORM

By:
Mark D. Hensley, City Attorney

ORDINANCE NO. 2026-

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF DELANO, CALIFORNIA, AMENDING SECTION 2.04.050 (PRESIDING OFFICER ELECTION AND DUTIES) OF CHAPTER 2.04 (CITY COUNCIL) OF THE DELANO MUNICIPAL CODE TO ESTABLISH THE OFFICE OF AN ELECTED MAYOR WITH A TWO YEAR TERM

WHEREAS, California Government Code section 34900 permits a city council to submit to the voters the question of whether voters shall elect a mayor and four city council members, and whether the mayor shall serve a two-year or four-year term; and

WHEREAS, the Delano City Council is currently organized under the default state law organization for general law cities in which the City Council selects one of its members to serve as Mayor pursuant to Government Code section 36801; and

WHEREAS, pursuant to Election Code section 9222, Government Code section 36502, and laws relating to general law cities, the City Council submitted ballot measures to the voters on November 3, 2026, amending the Delano Municipal Code to establish the office of an elected Mayor for a term of either two or four years; and

WHEREAS, on November 3, 2026, a majority of the voters voted in favor of Measure "____" which proposed the following to the voters: "MEASURE _____: ELECTIVE OFFICE OF MAYOR. Shall the electors elect a mayor and four city council members? A "Yes" vote means the citizens directly elect the mayor; a "No" vote continues the practice that the council chooses one of its number to preside as Mayor on an annual basis."; and

WHEREAS, on November 3, 2026, a majority of the voters voted in favor of a two-year term under Measure "____" which proposed the length of the term for elective office of mayor; and

WHEREAS, at the next general municipal election held in the city, in November 2028, one of the offices of city councilmember, to be filled at the election, shall be designated as the office of mayor, to be filled at the election pursuant to Government Code section 34902.

NOW THEREFORE, THE CITY COUNCIL OF THE CITY OF DELANO, CALIFONIA, DOES HEREBY ORDAIN AS FOLLOWS:

SECTION 1. *Incorporation of Recitals*. The City Council for the City of

Delano finds and declares the foregoing are true and correct and incorporates said recitals fully into this Ordinance as substantive findings.

SECTION 2. *Amendment*. Section 2.04.050 – Presiding Officer Election and Duties – of the Delano Municipal Code is hereby amended and will read as follows (deletions in ~~strikethrough~~ and additions in double underline):

2.04.050 – Presiding Officer Election and Duties

There shall be an elected mayor, who shall serve a two-year term. There shall be four elected councilmembers, who shall each serve a four-year term. The presiding officer of the city council shall be the elected mayor. The mayor pro-tem shall be appointed annually by the city council at the first meeting in December. The ~~mayor and~~ mayor pro-tem who shall be members of the city council shall serve one-year terms. ~~The mayor and mayor pro-tem shall be appointed annually by the city council at the first meeting in December. To be~~ A person is not eligible to be mayor unless her or she is at the time of assuming that office an elector of the city, and was a registered voter of the city at the time nomination papers are issued to the candidate, ~~a council member shall have at least one year service on the council prior to the appointment as mayor.~~ The mayor shall preserve strict order and decorum at all regular and special meetings of the council. The mayor shall state every question coming before the council, announce the decision of the council, in which event a majority vote of the council shall govern and conclusively determine such question of order. The mayor shall vote on all questions, the mayor's name being called last. The mayor pro-tem shall take on the duties of the mayor during the mayor's absence.

SECTION 3. *Environmental Assessment.* Adoption of this Ordinance is exempt from further environmental review under the California Environmental Quality Act (Pub. Resources Code, § 21000 et seq., "CEQA") and CEQA Guidelines (14 Cal. Code of Regs., § 15000 et seq., "CEQA Guidelines") because the actions contemplated do not constitute a "project," pursuant to CEQA Guidelines § 15378.

SECTION 4. *Repeal and Supersession*. The City Council adopts this Ordinance with the specific intent of superseding any contrary regulation or administrative policy and procedure. Consequently, all regulations that conflict with this Ordinance are repealed.

SECTION 5. *Construction*. This Ordinance must be broadly construed to achieve the purposes stated in this Ordinance. It is the City Council's intent that the provisions of this Ordinance be interpreted or implemented by the City and others in a manner that facilitates the purposes set forth in this Ordinance.

SECTION 6. *Severability*. If any part of this Ordinance or its application is

deemed invalid by a court of competent jurisdiction, the city council intends that such invalidity will not affect the effectiveness of the remaining provisions or applications and, to this end, the provisions of this Ordinance are severable.

SECTION 7. *Effective Date.* This Ordinance shall be considered as adopted upon the date that the vote is declared by the legislative body and shall go into effect 10 days after that date pursuant to California Elections Code section 9217. Accordingly, this Ordinance shall become effective on _____ _____, 2026.

SECTION 8. *Publication.* The City Clerk is directed to certify the passage and adoption of this Ordinance causing it to be posted as required by law.

PASSED AND ADOPTED this ___ day of _____, 2026.

_____
Liz Morris, Mayor

ATTEST:

_____
Ricardo G. Chavez, City Clerk

APPROVED AS TO FORM

By: _____
Mark D. Hensley, City Attorney

ORDINANCE NO. 2025-

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WHEREAS, California Government Code section 34900 permits a city council to submit to the voters the question of whether voters shall elect a mayor and four city council members, and whether the mayor shall serve a two-year or four-year term; and

WHEREAS, the Delano City Council is currently organized under the default state law organization for general law cities in which the City Council selects one of its members to serve as Mayor pursuant to Government Code section 36801; and

WHEREAS, pursuant to Election Code section 9222, Government Code section 36502, and laws relating to general law cities, the City Council submitted ballot measures to the voters on November 3, 2026, amending the Delano Municipal Code to establish the office of an elected Mayor for a term of either two or four years; and

WHEREAS, on November 3, 2026, a majority of the voters voted in favor of Measure "____" which proposed the following to the voters: "MEASURE ____: ELECTIVE OFFICE OF MAYOR. Shall the electors elect a mayor and four city council members? A "Yes" vote means the citizens directly elect the mayor; a "No" vote continues the practice that the council chooses one of its number to preside as Mayor on an annual basis."; and

WHEREAS, on November 3, 2026, a majority of the voters voted in favor of a four-year term under Measure "____" which proposed the length of the term for elective office of mayor; and

WHEREAS, at the next general municipal election held in the city, in November 2028, one of the offices of city councilmember, to be filled at the election, shall be designated as the office of mayor, to be filled at the election pursuant to Government Code section 34902.

NOW THEREFORE, THE CITY COUNCIL OF THE CITY OF DELANO, CALIFONIA, DOES HEREBY ORDAIN AS FOLLOWS:

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PASSED AND ADOPTED this ___ day of _____, 2026.

_____
Liz Morris, Mayor

ATTEST:

_____
Ricardo G. Chavez, City Clerk

APPROVED AS TO FORM

By: _____
Mark D. Hensley, City Attorney